

**NATIONAL EDUCATIONAL ASSESSMENT AND EXAMINATIONS AGENCY
(NEAEA)**

**NATIONAL EXIT EXAMINATION FOR LL.B PROGRAMME STUDENTS
OF ETHIOPIAN LAW SCHOOLS**

2017/ 2018 ACADEMIC YEAR

10 May 2018

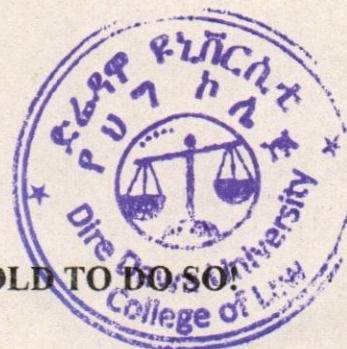
Time allowed: 3 Hours

PART III: PROCEDURAL LAWS AND SKILLS COURSES

GENERAL INSTRUCTIONS

1. ATTEMPT EACH SECTION ON THE BASIS OF SPECIFIC INSTRUCTIONS INDICATED IN EACH SECTION.
2. THIS IS A CLOSED BOOK EXAM FOR ALL MATERIALS EXCEPT CLEAN COPIES OF THE CIVIL PROCEDURE CODE, THE CRIMINAL PROCEDURE CODE AND THE FEDERAL COURTS ESTABLISHMENT PROCLAMATION WHICH CANNOT BE LENT TO NOR BORROWED FROM OTHER STUDENTS.
3. SUPPORT YOUR ARGUMENTS WITH PERTINENT LEGAL PROVISIONS WHHEREVER APPROPRIATE.
4. WRITE YOUR ANSWERS IN A SEPARATE ANSWER SHEET ATTACHED TO THE EXAM.
5. YOU MAY ASSUME FACTS WHERE NECESSARY.
6. WRITE LEGIBLY.
7. SWITCH OFF YOUR MOBILE PHONES.

PLEASE DO NOT TURN THIS PAGE UNTIL YOU ARE TOLD TO DO SO.



NATIONAL EDUCATION ASSOCIATION AND EXAMINATIONS BOARD
 (NEAB)
 NATIONAL EXAMINATION FOR LLB PROGRAMME STUDENTS
 OF ETHIOPIAN LAW SCHOOLS

2017/2018 ACADEMIC YEAR
 1st Year
 1st Semester
 1st Session
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PART II: PROCEDURAL LAWS AND SKILLS COURSES
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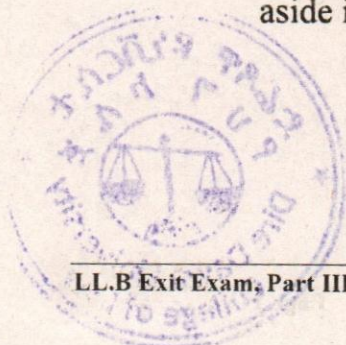
SECTION I: MULTIPLE CHOICE (30 %)

CHOOSE THE BEST ANSWER AND WRITE THE LETTER OF YOUR CHOICE ON A SEPARATE ANSWER SHEET APPENDED TO THIS EXAM BOOKLET.

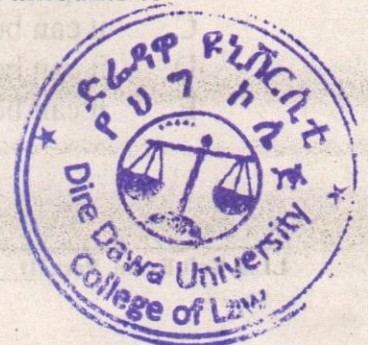
1. Ethiopian courts can assume judicial jurisdiction *in personam* where:
 - A. the defendant is an Ethiopian national or domiciliary.
 - B. the defendant owns property in Ethiopia.
 - C. the act which constitutes the subject matter of the suit occurred outside Ethiopia.
 - D. the plaintiff is an Ethiopian national.
 - E. the plaintiff owns property in Ethiopia.
2. One of the following does **NOT** fall under material jurisdiction of Federal courts.
 - A. Cases arising from federal laws and international agreements.
 - B. Cases in which the two litigant parties are permanent residents of two different Regional States.
 - C. Cases involving issues of nationality.
 - D. Cases involving immovable properties situated outside Addis Ababa and Dire Dawa.
 - E. Cases arising from negotiable instruments.
3. Mr X is sued by Mr. Y. However, the former fails to appear before the court on the date set for the first hearing. Assuming that the court is convinced that the non-appearance of the defendant is attributable to the negligence of the plaintiff, what ruling do you think the court will give?
 - A. Strike out the suit.
 - B. Adjourn the hearing to another date.
 - C. Order the suit be struck out or adjourn the hearing to another date.
 - D. Order the suit be dismissed.
 - E. Order the suit be dismissed or adjourn the hearing to another date.



4. Accelerated procedure is **NOT** the procedure for cases involving _____.
- A. application for withdrawal of interdiction
 - B. opposition of marriage
 - C. appointment of provisional liquidator
 - D. application for dissolution of manager
 - E. application for attachment of property
5. Which of the following is **NOT** true about examination of witnesses?
- A. All witnesses must take an oath or affirmation.
 - B. The court may at any stage recall a witness who has been already examined.
 - C. A party who wishes to testify in his /her own case cannot be cross examined.
 - D. The court can put any question to a witness at any stage of the examination.
 - E. A party who wishes to testify in his/her own case shall take an oath or affirmation.
6. Non-appearance of the appellant on the date fixed for the hearing of the appeal entails _____.
- A. adjournment of the hearing to another date
 - B. striking out of the appeal
 - C. suspension of the proceeding
 - D. dismissal of the appeal
 - E. review the appeal *ex parte*
7. One of the following is **correct** about summary procedure:
- A. The statement of claim must be accompanied by affidavit.
 - B. Where leave to defend is denied, the case shall be tried *ex parte*.
 - C. The leave to defend cannot be subjected to any condition.
 - D. In cases of several defendants, the leave to defend granted to one of the defendants will apply to the others.
 - E. Judgment rendered without leave to defend cannot be set aside in anyway.



8. One of the following **is correct** about leave to appeal out of time:
- A. The failure of the lawyer of the appellant can be a good cause to grant leave.
 - B. Decisions on applications for leave to appeal out of time are not appealable.
 - C. The position of the respondent is irrelevant in deciding on application for leave to appeal out of time.
 - D. An application for leave to appeal out of time shall be accompanied with affidavit.
 - E. Decisions on application for leave to appeal out of time can be reviewed by the same appellate court.
9. An appellate court shall remand a case where _____.
- A. the lower court made an error in examining witnesses
 - B. the lower court erred in evaluating evidence produced by the litigants
 - C. the lower court disposed the suit based on preliminary objections
 - D. the lower court omitted to frame a relevant issue
 - E. the lower court omitted to decide on an issue central to the dispute.
10. Which of the following is **NOT** true about intervention of third party in a suit?
- A. Application for intervention cannot be made after the first hearing.
 - B. An application for intervention shall be made by a separate statement which specifies grounds justifying the intervention.
 - C. Where the intervention is allowed, the proceeding shall be stayed until the parties are served with the pleading of the intervening party.
 - D. Parties to the dispute shall not be allowed to respond to the third party's application for intervention.
 - E. Failure on the part of the intervening party to properly serve the two parties with a copy of his/her statement amounts to withdrawal of intervention.



11. One of the rights of an accused during the pre-trial proceeding is:

- A. the right to a public hearing.
- B. the prohibition of double jeopardy.
- C. the right to know the reasons for arrest.
- D. the right to appeal.
- E. the right to a review of judgment.

12. The right to bail of a person:

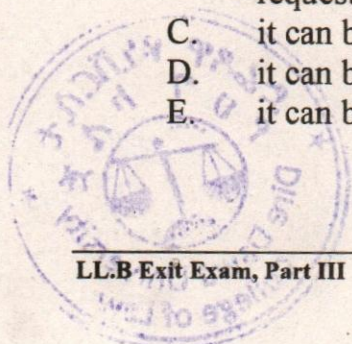
- A. is unconditional.
- B. is evaluated against some subjective criteria as stipulated under Article 63 of the Criminal Procedure Code.
- C. can be denied if the objective criteria of Article 67 of the Criminal Procedure Code of Ethiopia are satisfied.
- D. can be denied if the subjective criteria of Article 67 of the Criminal Procedure Code of Ethiopia are satisfied.
- E. is not applicable in Ethiopia.

13. Principal jurisdiction exists in cases where the accused is:

- A. charged with the commission of an offence in Ethiopia.
- B. charged with the commission of certain offences against Ethiopia's neighbours.
- C. charged with the commission of an offence in a foreign country by an Ethiopian official who does not enjoy immunity from prosecution abroad.
- D. a foreign national.
- E. is married to an Ethiopian person.

14. A preliminary inquiry is important in Ethiopia's criminal legal system because:

- A. it helps to avoid needless proceedings that do not produce results.
- B. both the accused and the prosecution office can make a request to hold a preliminary inquiry.
- C. it can be used as an alternative to a formal trial.
- D. it can be applicable to all sorts of crimes.
- E. it can be instituted at the request of the judge.



15. When a public prosecutor refuses to institute a proceeding, a victim of a crime can be allowed to bring a private prosecution. Accordingly,
- A. the private complainant exercises all the rights which the public prosecutor would have in public proceedings.
 - B. the private complainant is given the power to select the court that has local jurisdiction.
 - C. the private complainant does need a prior authorization to bring a private prosecution for crimes punishable only upon formal complaint.
 - D. the private complainant is no longer considered a victim.
 - E. the private complainant incurs no cost if he requests the court to summon additional witnesses.
16. Which one of the following presumptions is taken **without** proof of the basic fact?
- A. Irrebuttable mandatory presumptions
 - B. Rebuttable mandatory presumptions
 - C. Presumption of payment
 - D. Permissive presumptions
 - E. Presumption of innocence
17. Which one of the following is **wrong** about judicial notice of adjudicative facts?
- A. A fact should be known by the judge.
 - B. A fact should be part of ordinary common knowledge around the jurisdiction of the court.
 - C. A fact need not be known worldwide.
 - D. A fact need not be known by experts.
 - E. Non-existence of, or less dispute on, the facts in general.



18. Which one of the following **is true**?

- A. In the Ethiopian law, extrajudicial admission may be inadmissible whereas judicial admission is always admissible and conclusive evidence.
- B. Similar occurrences to the fact in issue are always relevant except evidence to prove mental status of the suspect.
- C. The bad character of the accused could never be admissible in criminal cases.
- D. In civil cases character is irrelevant except when character by itself is an issue.
- E. Informal admission is irrelevant at all.

19. Imposing the burden of proof on a public prosecutor in criminal cases emanates from the constitutional idea of the right:

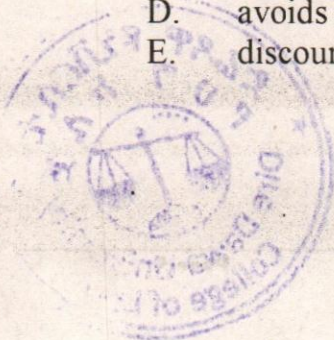
- A. not to be arrested without sufficient evidence.
- B. to be represented by a legal counsel.
- C. against self-incrimination of the accused.
- D. to be informed of the reason of arrest.
- E. to be regarded as proud citizen of the nation.

20. Capacity is presumed under Article 196 of the Ethiopian Civil Code. What, in your opinion, is the most acceptable ground that can justify this evidential rule?

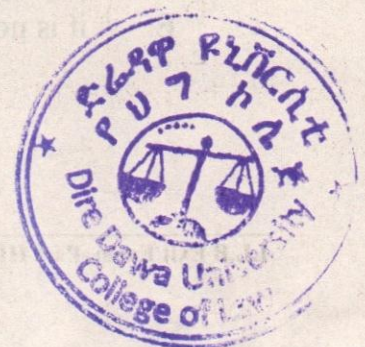
- A. Due to the difficulty to prove capacity
- B. Existence of high probability for capacity
- C. Neutrality of capacity to juridical acts
- D. Impossibility to prove capacity
- E. For the purpose of procedural convenience

21. The fairness theory of jurisdiction:

- A. blends the interest of the defendant and sovereign authority.
- B. provides that a plaintiff should go to the forum of the defendant.
- C. applies the doctrine of pendency to protect the defendant.
- D. avoids the possibility of forum shopping.
- E. discourages choice of court agreements.



22. One of the following statements is **true** about the doctrine of *Forum Non Conveniens*:
- A. It is based on the assumption that the residence of the defendant is the most appropriate court to assume jurisdiction.
 - B. It provides that a court that seized the case first should be given priority.
 - C. Respect for the court with strong connection to the case is the underpinning justification for the doctrine.
 - D. The doctrine limits the discretionary power of the court that has seized the case first.
 - E. Promoting judicial efficiency is the main justification of the doctrine.
23. One of the following is considered as a general ground of jurisdiction in civil law countries.
- A. The place of the formation of the contract.
 - B. The place where the contract is to be performed.
 - C. The place where the damage was caused.
 - D. The place where the plaintiff resides.
 - E. The place where the defendant resides.
24. One of the following is **NOT** an accepted justification to assume jurisdiction *in personam* in many countries.
- A. The consensus of the defendant.
 - B. If there is a sufficient connection between the forum and the plaintiff.
 - C. If there is a sufficient connection between the causes of the claim and the forum.
 - D. If there is a sufficient connection between the defendant and the forum.
 - E. Based on bilateral or multilateral treaties.
25. In Ethiopia, the court that has a first instance material jurisdiction on private international law issues is:
- A. the Cassation Bench of the Federal Supreme Court.
 - B. the Federal Supreme Court.
 - C. the Federal High Court.
 - D. the Regional High Courts.
 - E. the Federal First Instance Court.



26. One of the following is **true** about Ethiopian private international laws:
- A. Residence of the defendant is accepted as a connecting factor to establish judicial jurisdiction.
 - B. Regional state courts have no jurisdiction to decide on Private international law cases.
 - C. Ethiopian courts should decline to adjudicate a case when there is another convenient forum to adjudicate the case.
 - D. Ethiopian courts apply the law of the defendant.
 - E. Reciprocity is an important element that Ethiopian courts consider to enforce a foreign judgment.
27. Courts commonly apply their own procedural laws even when they are convinced that the applicable law to solve the case at hand is a foreign law. The reason is:
- A. to protect the right of the defendant.
 - B. to protect the right of the plaintiff.
 - C. because it deeply relates with the legal culture and tradition of the forum.
 - D. because it is difficult to determine the applicable procedural law.
 - E. because it has insignificant effect on the outcome of the case.
28. One of the following places is accepted by most countries as the most relevant forum to assume jurisdiction over immovable property:
- A. The residence of the defendant
 - B. The domicile of the defendant
 - C. The country of the owner of the immovable
 - D. The place where the immovable is located
 - E. The domicile of the plaintiff
29. The generally accepted criterion for a *choice of law clause* to be accepted by the forum is when:
- A. parties choose the Law of the Forum.
 - B. the contract is valid under the law of the forum.
 - C. the contract is made between foreign nationals.
 - D. the contract is formed in the forum.
 - E. it is not against the national interest of the forum.

30. One of the following is **true** in relation to interstate conflict of laws in Ethiopia.

- A. The Civil Procedure Code regulates interstate conflicts in Ethiopia.
- B. The Constitution regulates interstate conflicts in Ethiopia.
- C. The regional state governments have the legislative jurisdiction to enact their own conflict of laws.
- D. Interstate conflict of laws is not a problem as the main laws are harmonized by the federal government.
- E. The federal government has the legislative jurisdiction to enact laws to regulate interstate conflict of laws.



SECTION III: MATCHING (10%)

MATCH EACH ITEM UNDER COLUMN "A" WITH ITS BEST CORRESPONDING ITEM UNDER COLUMN "B".

Column A

1. Miranda test
2. Voluntary or reliability test
3. Remand for trial
4. Remand for investigation
5. Accused person
6. Imprisoned person
7. Preliminary inquiry
8. Sentence bargaining
9. Charge bargaining
10. Fact bargaining

Column B

- A. amend the charge to a lesser offense
- B. convicted person
- C. privilege against self-incrimination
- D. held for all kinds of crimes
- E. inapplicable in Ethiopia
- F. cannot be issued by a judge in Ethiopia
- G. after the conclusion of police investigation
- H. held to test the adequacy of evidence
- I. eliminates the need for the prosecutor to prove certain facts
- J. instilling fear, pressure or of creating hope of advantage to overbear the independence or free will of a person
- K. before the conclusion of police investigation
- L. prosecutor agrees to make a specific recommendation to the judge
- M. charged person
- N. parolee
- O. all facts are removed from the charge



SECTION III: SHORT ANSWERS (10 %)

GIVE A SHORT ANSWER TO THE FOLLOWING QUESTIONS.

- 3.1 State whether character evidence is relevant in general in criminal cases? Why or Why not? (5%)
- 3.2 Why do we need to have a preliminary hearing? How is a preliminary hearing different from a formal trial? (5%)

SECTION IV: ESSAY TYPE QUESTIONS (20%)

- 4.1 Conflict of laws/private international law is traditionally known to consist of three elements. Name and briefly discuss each of the three elements. (10%)
- 4.2 Explain three basic reasons why high standard of proof is required in criminal cases compared to civil cases. (10%)



SECTION V: HYPOTHETICAL CASES (30 %)

5.1. Hypothetical Case (30%)

A multinational company that is in the process of establishing offices in Addis Ababa entered into a contract of sale with JJ Car Importer, an Ethiopian private limited company. According to the terms of the contract, the seller, JJ Car Importer agreed to deliver to the buyer, ten 2017 Model Toyota Automobiles within three months. The buyer agreed to pay ten million Ethiopian Birr (one million Birr per car) and full payment was effected three days after the conclusion of the contract. However, JJ Car Importer failed to deliver the cars on the date that was agreed upon. Annoyed by the delay in delivery, the buyer put JJ Car Importer in default by sending a notice which required the latter to deliver the cars within 45 (forty five) days. Despite the notice, JJ Car Importer failed to deliver the cars.

As a result, the buyer sued JJ Car Importer at the Federal High Court for non-performance of the contract claiming the return of the ten million Ethiopian Birr which it had paid to the latter together with court and attorney fees. In reply, JJ Car Importer submitted its statement of defense to the court. After having examined the litigants' pleadings, oral arguments, and evidence, the court decided in favor of the buyer ordering JJ Car Importer to pay ten million Ethiopian Birr. No appeal was lodged against the judgment of the court and the decree was executed accordingly.

A year later, however, another suit was filed by the multinational company against JJ Car Importer at the Federal First Instance Court based on the same contract of sale claiming that the latter should pay one hundred thousand Ethiopian Birr as the legal interest for the Ten Million Ethiopian Birr which was paid to the latter upon the conclusion of the contract. Moreover, the plaintiff claimed the reimbursement of the court fee and attorney's fee which it had incurred in the earlier case tried at the Federal High Court.

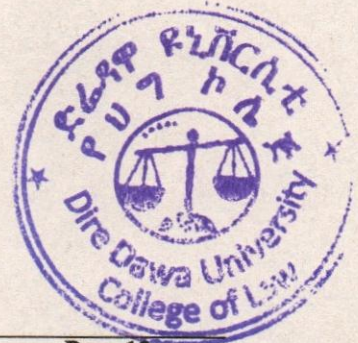


5.1.1. If you were the lawyer of JJ Car Importer, what tenable preliminary objections would you raise against the claim? (15%)

5.1.2. What would be your ruling if you were the judge who presides over the case? (10 %)

5.1.3. Assume that the Federal First Instance Court overruled all the preliminary objections raised, by JJ Car Importer. Can JJ Car Importer appeal against such rulings of the court? Why? (5 %)

NB- The analysis should indicate the relevant and applicable laws.



2.1.1. If you were the lawyer of U Car Importer, what specific preliminary objections would you raise against the claim? (5%)

2.1.2. What would be your ruling if you were the judge who presides over the case? (10%)

2.1.3. Assume that the Federal First Instance Court overruled all the preliminary objections raised by U Car Importer. Can U Car Importer appeal against such rulings of the court? Why? (5%)

NB- The analysis should indicate the relevant and applicable laws.

VI

VII

VIII

IX

X

XI

